SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

April 7, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

(1) Court by calling (408) 808-6856 and

(2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to Department 6: https://santaclara.courts.ca.gov/online-services/remote-hearings

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	25CV46061	Johnny Espino vs General Motors, LLC	See Line Item 1 below
9:00 2	25CV474358	Chenjie Wei vs FCA US LLC	See Line Item 2 below
9:00 3	25CV474358	Ernesto Sandoval et. al. vs Alicia Mendoza	Plaintiff petitions this court to compel Defendant to respond to Plaintiff's form interrogatories. Defendant responded and amended her reponses on December 18, 2025 to correct possible deficiencies. Petition to compel and monetary sanctions are DENIED.
9:00 4	24CV406082	Eduardo Sierra et. al. v FCA US LLC, et. al.	Plaintiff petitions this court to compel production of records pursuant to the Song-Beverly Act. Defendant raises overly broad objections. Platintiff's petition to compel production of documents is GRANTED. Monetary sanctions in the amount of $3,080 is GRANTED.
9:00 5	24CV449505	Teyhuan Ahluwalia vs. Children's Discovery Museum of San Jose, et. al.	Plaintiff moves this court for a protective order limiting the Defendant's demand for a medical examination to a single medical examination. Without knowing the outcome of Defendant's first request for a medical examination, the protective order appears to be premature. Plaintiff's motion is DENIED.
9:00 6	25CV477946	Roya Javid vs. Ahmad Javid	Defendant moves this court for attorney fees. On March 27, 2026, Plaintiff submitted a request for dismissal wth prejudice after Defendant had filed a motion to enforce settlement. Defendant's motion for attorney fees of $24,688.50 is GRANTED.
9:00 7	26CV485516	Jillian Gerten vs. Adrian Loeza	Plaintiff petitions this court for a writ of attachment to prevent further dissipation of Plaintiff's identifiable assets. Plaintiff entered into an oral contract with Defendant for a joint investment agreement valued at $650,000. Defendant converted funds for personal use. A temporary protective order is appropriate because there is a great likelihood of irreparable injury absent interim relief. (CCP sections 485.019 and 486.010. In addition, the Court finds that it is more likely than not that Plaintiff will obtain judgment against Defendant. Plaintiff's motions for a Right to Attach order, a Writ of Attachment, and a Temporary Protective Order are GRANTED.
9:00 8	24CV444162	Tech KY vs Jesus Hernandez	Plaintiff moves this court for terminating sanctions. On September 5, 2025, court granted Plaintiff's petition to compel Defendant to serve verified responses to Plaintiff's Interrogatories. Defendant failed to comply. On October 28,2025, Court again granted Plaintiff's petition to compel. Defendant again failed to comply, even though monetary sanctions were imposed. CCP 2023.030(d) allows the court to impose terminating sanctions when a violation is willful and preceded by a history of abuse. (Mileikowsky v. Tenet Health System (2005) 128 Cal.App.4th 262m 279-280.) Terminating sanctions against Defendant's answer to Plaintiff's complaint is GRANTED. Plaintiff's motion for default judgment against Defendant is GRANTED.

9:00 22,23	24CV443183	Shenna Huynh vs Redis Labs	Plaintiff moves this court to impose terminating sanctions against Defendant Gebhardt for failure to appear for deposition. Defendant Gebhardt has failed to respond to two prior court orders issued on August 12, 2025 and on January 8, 2026. He failed despite the court imposing monetary sanctions. When a party repeatedly violates discovery obligations and court orders, a trial court is not required to continue issuing incremental directives that are predictably ignored. (Dept. of Forestry and Fire Protection v. Howell (2017) 18 Cal.App.5th151, 191-193.) Plaintiff's motion to strike Defendant Gebhardt's answers and affirmative defenses is GRANTED. Plaintiff's motion for monetary sanctions of $6,435 is GRANTED. Plaintiff moves this court to Compel Production of Documents. Plaintiff's motion is GRANTED IN PART AND DENIED IN PART. Plaintiff's requests for Production Nos. 20,24, 25, 27, 30, 31, 60, 66, 71, 72 are overbroad and therefore, DENIED. Plaintiff's requests for Production Nos.36,37,47, 58, 59, 74, 75, 76,77, 78, and 80 are relevant and therefore GRANTED.
9:00 24	24CV44820	Christine Skelley vs. Ford Motor Company	Defthaendant petitions this court to deem admissions to a propounded Request for Admissions admitted. Defendant served Plaintiff with an RFA. Plaintiff failed to respond. Plaintiff filed a petition to compel on July 25, 2025. Defendant failed to respond until 12/2/2025. Failure to timely respond to an RFA waives all objections including privileged and work product information (CCP section 2033.280(a)). Defendant's motion is GRANTED. Defendant's request for monetary sanctions is GRANTED. Defendant shall prepare a proposed order that repeats the admissions to be admitted verbatim.
25	25CV467732	Jae Ho Kim vs. Silicon Magic Semiconductor	Defendant Mitus moves this court to compel arbitration. In this case there is an agreement to arbitrate between parties. However, CCP 1281.2(c) grants the court discretion to deny a motion to compel arbitration so as to avoid conflicting rulings. Plaintiff has claims against Mitus and Silicon Magic Semiconductor—Silican Magic is not requesting arbitration. Both claims involve similar sets of law and facts. There is a potential for inconsistent rulings. Defendant Mitus' motion to compel arbitration is DENIED.
26	25CV435775	Melissa Bentz v. James Bentz	Defendant moves this court to extinguish the lis pendens that has been imposed upon Defendant's property and to impose costs for attorney's fees. The underlying case does not appear to be a property claim. Defendant's motion to extinguish the lis pendens and to grant attorney costs is GRANTED.
27	24cv435775	Jennifer Khu vs. Saul Flores	See line item 27 below.

Line 1

Calendar Line 1

Case Name: *Espino v. General Motors LLC*

Case No.: 25CV460651

This is a lemon law action. Defendant General Motors LLC ("GM") demurs to the first through fifth causes of action of the first amended complaint ("FAC") filed by plaintiff Johnny Espino ("Plaintiff").

GM's demurrer to the first through third causes of action on the ground that they are barred by the statute of repose pursuant to Code of Civil Procedure sections 871.20 and 871.21 is OVERRULED. As to the third cause of action, section 871.20 plainly states that it applies to a violation of section 1793.2 (b) or (d); it does not state that it applies to a violation of section 1793.2, subdivision (a)(3). As to the first and second causes of action, in order for GM to rely on sections 871.20 or 871.21, it needs to have "elect[ed] to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles." (Code Civ. Proc. §§ 871.29, subd. (b).) There is no such allegation in the FAC, and GM neither mentions section 871.29 or 871.30 in its memorandum of points and authorities in support of the demurrer, much less argue and demonstrate that it made any such election, and GM does not request judicial notice of any election, thereby failing to demonstrate that either section 870.20 or 871.21 applies to the FAC. (See *Richtek USA, Inc. v. uPI Semiconductor Corp*. (2015) 242 Cal.App.4th 651, 658 (Sixth District stating that "[w]here, as here, [plaintiffs] demur on the primary ground that the action is time-barred under the affirmative defense of the statute of limitations… the defect must clearly and affirmatively appear on the face of the complaint"); see also *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400 (Sixth District stating that "to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint").)

GM's demurrer to the fourth cause of action on the ground that it is barred by the four-year statute of limitations is also OVERRULED. GM is incorrect that the delayed discovery doctrine is *never* applied to implied warranty claims. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309-1311 (stating that "by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery…when a buyer has accepted a tender of goods, he or she 'must, within a reasonable time after he or she discovers or should have discovered any breach, notify the seller of breach or be barred from

concealment. (*Dhital, supra,* 84 Cal.App.5th at pp. 840-841.) Under *Dhital*, the economic loss rule does not bar the complaint's sixth cause of action because it alleges that FCA fraudulently induced Wei into entering a contract with FCA by concealing defects known to FCA. (Complaint, ¶¶ 64-77.) FCA argues that the complaint fails to allege any independent duty or harm beyond the terms of FCA and Wei's alleged contractual relationship. (MPA, p. 19:3-26, citing *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 (*Rattagan*).) *Rattagan* concerned fraud that allegedly occurred *during* a contractual relationship, not fraud in the *inducement* of a contract. (See *Rattagan, supra,* 17 Cal.5th at p. 41, fn. 12.) Where fraudulent inducement is alleged, the fraud occurs prior to the formation of the contract and is independent from the contract. (*Dhital, supra,* 84 Cal.App.5th at pp. 840-841.)

LINE 27

Defendants' demurrer to Plaintiff's second amended complaint ("SAC") came on for hearing before the Court on March 10, 2026. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on March 9, 2026.

I. Alleged Facts

On February 3, 2020, Plaintiff entered into a commercial lease agreement with Defendants for a property located at 2331 South 7th Street, Suite 04, in San Jose, California. All the conditions required for Defendants' performance were met. However, from June 1, 2020, through May 1, 2024, Defendants failed to pay base rent and NNN charges, totaling $369,308.00, in violation of their agreement. (PLD-C-001(1), Ex. A)

Plaintiff initiated this action on April 16, 2024, and amended her complaint on September 17, 2024, and August 20, 2025, alleging a single cause of action for breach of contract.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (Code Civ. Proc., 430.10, subds. (e) (f).) A demurrer may be utilized by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as